DRUG AND ALCOHOL REPORT

PRIVACY ACT STATEMENT

AUTHORITY: 10 U.S.C. 1090, Identifying and treating drug and alcohol dependence; 10 U.S.C. 5013, Secretary of the Navy; 10 U.S.C. 5041, Headquarters, Marine Corps; 42 U.S.C. 290dd-2, Confidentiality of records; DoD 6025.18-R, DoD Health Information Privacy Regulation; and E.O. 9397 (SSN), as amended.

PURPOSE(S): This system is used to train, educate, identify, screen, counsel, rehabilitate, and monitor the progress of individuals in drug and alcohol misuse programs. Information is used to screen and evaluate the certified counselors, counselor interns, and counselor applicants throughout the course of their duties.

ROUTINE USES: Information from records may be released without the member's consent in the following situations:

To medical personnel to the extent necessary to meet a bona fide medical emergency.

To qualified personnel for the purpose of conducting scientific research, management audits, or program evaluation, but such personnel may not identify, directly or indirectly, any individual patient in any report of such research, audit or evaluation, or otherwise disclose patient identities in any manner.

If authorized by an appropriate order of a court of competent jurisdiction granted after application showing good case therefore. In accessing good cause, the court shall weigh the public interest and the need for disclosure against the injury to the patient, to the physician patient relationship, and to the Start Printed Page 7770 treatment services. Upon the granting of such order, the court, in determining the extent to which any disclosure of all or any part of any record is necessary, shall impose appropriate safeguards against unauthorized disclosures.

The above prohibitions do not apply to any interchange of records within the Armed Forces or within those components of the Department of Veterans Affairs furnishing health care to veterans or between such components and the Armed Forces.

Records, shall, except as provided therein, be confidential and be disclosed only for the purposes and under the circumstances expressly authorized in 42 U.S.C. 290dd-2. This statute takes precedence over the Privacy Act of 1974, as amended, in regard to accessibility of such records, except to the individual to whom the record pertains.

The content of any record may be disclosed in accordance with prior written consent of the patient with respect to whom such record is maintained, but only to such extent, under such circumstances, and for purposes as may be allowed under such prescribed regulations.

DISCLOSURE: Mandatory.

More information on the SORN may be found at the following link:
https://www.federalregister.gov/documents/2016/02/16/2016-02946/privacy-act-of-1974-system-of-records

1. NAME (*last, first, middle initial)*:	2. DoD ID/SSN:	3. PAY GRADE:	4. BRANCH OF SERVICE:	5. REPORTING COMMAND UIC:

6. DATE OF REPORT:	7. DATE OF INCIDENT:	8. NATURE OF INCIDENT:	Misuse	Trafficking
			Manufacturing	Possession

9. PRIMARY SUBSTANCE INVOLVED:	10. METHOD OF IDENTIFICATION:	11. SCHEDULED SCREEN DATE:

12. LOC. DRUG/ALCOHOL PRIMARILY USED:	13. GEOGRAPHIC LOCATION:	14. DRIVING UNDER THE INFLUENCE/ DRIVING WHILE INTOXICATED/ BOATING WHILE INTOXICATED/ OPERATING WHILE INTOXICATED:	Yes / No

15. INCIDENT DESCRIPTION/REFERRAL REASON:

16. COMMANDING OFFICER NAME:	17. COMMANDING OFFICER SIGNATURE:	18. SIGNATURE DATE:

DISTRIBUTION: Copy to Service Record (Drug) or Command File (Alcohol). Other distribution as required by Chain of Command.